Judges must be elected from among persons of high moral character, who possess the qualifications required in their respective countries for appointment to the highest judicial offices, or are jurisconsults of recognized competence in international law.

Once elected, a member of the Court is a delegate, neither of the government of his own country nor of that of any other state. The members of the Court are independent judges, before taking up their duties, is to make a solemn declaration in open court that they will exercise their powers impartially and conscientiously. In order to guarantee this independence, no member of the Court can be dismissed unless, in the unanimous opinion of the other members, he no longer fulfils the required conditions.

A member of the Court, when engaged in the business of the Court, enjoys privileges and immunities comparable with those of the head of a diplomatic mission. Each member of the Court receives an annual salary with a special supplementary allowance for the President and, on leaving the Court, they receive annual pensions after serving a nine-year term in office.

The Court elects its own President and Vice-President every three years by secret ballot. The President presides at all meetings of the Court and he directs its work and supervises its administration, with the assistance of a Budgetary and Administrative Committee and of various other committees, all composed of members of the Court. During deliberations, the President has a casting vote in the event of votes being equally divided.

The Vice-President replaces the President in his absence, in the event of his inability to exercise his duties, or in the event of a vacancy in the presidency. For this purpose he receives a daily allowance. In the absence of the Vice-President, this role devolves on a senior judge.

Jurisdiction

The Statute confers three types of jurisdiction upon the Court:

- Voluntary
- Compulsory